

TENTATIVE RULING

Case: **Rosales v. Mariani Nut Company**
 Case No. CV2025-2290

Hearing Date: **April 29, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Mariani Nut Company's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's unopposed motion to compel arbitration and stay case is **GRANTED**. (9 U.S.C. § 1, et seq.; Code Civ. Proc., § 1281 et seq.; Stenson Decl.) "A party seeking to compel arbitration of a dispute bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (*Jenks v. DLA Piper Rudnick Gray Cary US LLP* (2015) 243 Cal.App.4th 1, 8; see also *Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 357; *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 380-381.) Defendant has established the existence of an arbitration agreement between defendant and plaintiff Andres Rosales. (9 U.S.C. § 4; Code Civ. Proc., § 1281.2; *Jenks, supra*, 243 Cal.App.4th at p. 8; Stenson Decl., ¶¶ 5-13, Exhs. 1-6.) As this motion is unopposed, plaintiff has failed to show that a defense exists, which would prevent the Court from compelling arbitration. (See *Jenks, supra*, Cal.App.4th at p. 8.)

This matter is stayed pending the completion of arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Vaidya v. Dhesi**
 Case No. CV2026-0221

Hearing Date: **April 29, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendants Rajpreet Dhesi, Anita Dhesi, Keerut Dhesi, and Blueberry Trading LLC's demurrer to complaint is **CONTINUED** to **June 17, 2026**, at 9:00 a.m. in Department Eleven.